



# FORMAL NOTICE OF RESIGNATION DUE TO AUTOMATICALLY UNFAIR CONSTRUCTIVE DISMISSAL

4 messages

Wilbur William Matthee <wilburmat@gmail.com> Fri, 12 Dec 2025 at 03:29

To: lebohang.mpumlwana@afrocentrichealth.com

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Bcc: Sr Wilbur William Matthee <wilburmat@gmail.com>

TO:  
The Board of Directors (via Company Secretary)  
AFROCENTRIC HEALTH (RF) (PTY) LTD  
37 Conrad Road, Florida North, 1709  
CC:  
Mr./Ms. Gerald Van Wyk (Chief Executive Officer)  
Chair of the Audit & Risk Committee  
Chair of the Social & Ethics Committee  
Group Human Resources Department  
DATE: 11 December 2025

Dear Board of Directors,

I, Wilbur Matthee, hereby give notice of the immediate termination of my contract of employment with Medscheme Holdings, effective 12 December 2025.

This resignation is not voluntary. I am terminating my employment because the employer, Medscheme Holdings(A Division of AfroCentric Health), has rendered the continuation of the employment relationship irretrievably intolerable through its malicious, calculated, and institutional conduct.

This termination constitutes an Automatically Unfair Constructive Dismissal in terms of the Labour Relations Act (LRA).

1. Grounds for Intolerability: Institutional Malice and Victimisation

The conditions rendering my continued employment intolerable are proven by the employer's formal legal submission in the matter of Wilbur Matthee and Medscheme Holdings (CCMA Case Ref. Number: WECT23364-25), specifically the Respondent's Answering Affidavit signed under oath on 10 December 2025.

The Affidavit contains specific statements that constitute severe and ongoing occupational detriment, victimisation, and unfair labour practice, including:

Malicious Character Attacks: The Affidavit labels me as having an "untruthful character," engaging in a "fishing expedition," and acting with "sloppiness and lack of regard" for the Commission. This ad hominem attack, under oath, fundamentally destroys the trust and confidence necessary for any employment relationship.

Abuse of Process: The document constitutes an abuse of the CCMA's services by employing tactics designed to discredit and cause further financial harm, rather than engaging in a good faith legal defence.

Institutionalised Victimisation: The Affidavit explicitly dismisses my claims of victimisation and mental health issues as having "no relevance" and being used to "sensationalize" the dispute (Sections 6.3 and 8.5). This demonstrates that the victimisation is ongoing, officially sanctioned, and institutionalised through the Respondent's legal representation.

## 2. Legal Basis: Automatically Unfair Constructive Dismissal

The employer's conduct, as documented in the sworn Affidavit, makes this termination an Automatically Unfair Constructive Dismissal in terms of the following sections of the Labour Relations Act (LRA):

Section 186(1)(e): The employee terminated the contract of employment because the employer made continued employment intolerable.

Section 187(1)(h): The reason for the employer's conduct is directly linked to an act of retaliation against a Protected Disclosure (the P1 Material Risk Report and subsequent updates regarding discrimination and victimisation).

## 3. Conclusion and Formal Notice

The content of the Respondent's Opposing Affidavit eliminates any conceivable possibility of restoring the employment relationship. I consider myself to have been dismissed by the employer's malicious conduct.

I have already formally informed the Board of the governance failure related to this P1 risk and the ongoing victimisation. All further matters relating to this dispute, including the claim for maximum compensation and a demand for punitive costs (Attorney-and-Client scale), will be handled at the CCMA/Labour Court, and via my External Whistleblower disclosures to the JSE, FSCA, CMS, DEPARTMENT OF EMPLOYMENT & LABOUR - INSPECTION & ENFORCEMENT + B-BBEE, . Pending complete governance failure.

Yours sincerely,

Wilbur Matthee

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**Mail Delivery Subsystem** <mailer-daemon@googlemail.com>  
To: wilburmat@gmail.com

Fri, 12 Dec 2025 at 03:30



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